

A narrow follow-on to New York's RAISE Act

Frontier Artificial Intelligence Officer Certification Act

Research draft v0.2 - 20 August 2026

The proposal

New York's RAISE Act already requires large frontier developers to maintain and follow frontier AI frameworks, publish model transparency reports, assess catastrophic risks, and report critical safety incidents. The proposed amendment adds one accountability mechanism: identified natural persons must sign for those duties after reasonable inquiry or state publicly where material noncompliance exists.

The draft adds a new § 1422-a to Article 44-B of the General Business Law. It requires:

- a filing for new or substantially modified models and, prospectively, for covered models already deployed or in extensive internal use when the amendment takes effect;
- an annual certification or acknowledgment of noncompliance;
- signatures from the developer's highest executive, the highest executive of an ultimately controlling affiliate, the senior officer responsible for the frontier AI framework, and any additional person holding final material decision authority over deployment or extensive internal use;
- a reasonable inquiry supported by adequate records and internal escalation systems;
- a searchable public register naming the developer, model, filing type, and required signers, with protected technical information redacted where law permits;
- individual civil enforcement based on failure to exercise due care in the signer's own duties; and
- personal payment of an individual penalty, without shifting it back to the company through indemnification, insurance, reimbursement, or a compensation gross-up.

Why it fits the enacted framework

The proposal does not create a separate AI regulatory system. It uses the RAISE Act's existing definitions, coverage thresholds, Department of Financial Services office, frontier AI frameworks, transparency reports, and reporting duties. It does not change which models or companies are covered, create a private right of action, establish a technical safety standard, or create a new criminal offense.

The draft is designed to distinguish accountability from automatic liability. A signer is not personally liable merely because the company violated the RAISE Act. The Attorney General must prove that the signer failed to exercise due care in performing a duty within that person's authority. A truthful acknowledgment of noncompliance is not, by itself, personal liability or permission to deploy.

The governance problem it addresses

Frontier developers use materially different structures: parent-controlled subsidiaries, public-benefit corporations, trusts, dual-class voting arrangements, and founder-controlled companies. A title-only rule can miss where deployment authority actually sits. The draft therefore combines named senior offices with a limited functional test based on final material decision authority. It excludes title, expertise, technical access, ministerial implementation, and advice standing alone, protecting engineers and ordinary employees who do not possess decision authority.

Review status

This is a public-domain, AI-assisted research draft maintained at <https://github.com/FrontierAIAccountabilityProject/raise-officer-certification>. It draws on the longer Model Act research record but is deliberately narrower and civil. It has not been introduced, endorsed, or reviewed by legislative counsel. Open questions include signer scope, penalty calibration, treatment of existing insurance arrangements, public-register redactions, and conformity with New York drafting conventions.

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